Basic Structure of the Constitution

1. Core rule

- **Article 368 permits amendment, not destruction of the Constitution's identity.** Parliament may amend any provision, including Fundamental Rights, subject to the basic structure.
- **Kesavananda Bharati (1973):** foundation of the doctrine. The Court identifies protected features through cases; there is **no exhaustive, closed list**.
- Neither every existing provision nor every policy is automatically a basic feature. Examine the amendment's **effect on constitutional fundamentals**.
- The doctrine limits **constituent power** and protects constitutional supremacy; it does not make every constitutional provision unchangeable.

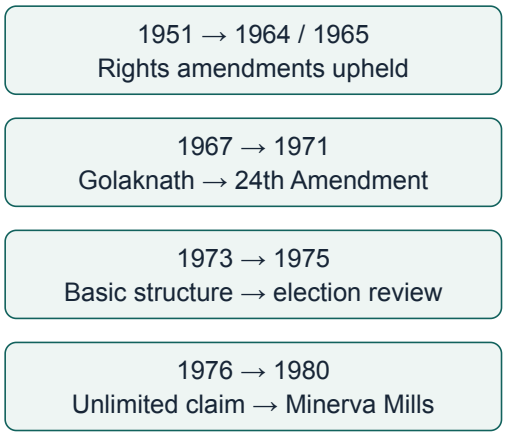


Amendment power is broad but constitutionally limited.

2. Evolution: the essential chronology

- **Shankari Prasad (1951):** upheld First Amendment; “law” under 13 referred to ordinary legislation, not a constitutional amendment. Parliament could amend Fundamental Rights.
- **Sajjan Singh:** upheld Seventeenth Amendment and reaffirmed that approach. Judgment delivered **30 October 1964**, reported **1965**—the two year labels refer to the same case. Separate opinions raised doubts about altering fundamental constitutional features.
- **Golaknath (1967):** treated amendment as “law” for 13; Parliament could not abridge Fundamental Rights. **Prospective overruling** preserved earlier amendments.
- **24th Amendment (1971):** expressly affirmed Parliament's constituent power in 368; excluded constitutional amendments from 13; made presidential assent obligatory.
- **Kesavananda Bharati (24 April 1973):** overruled Golaknath's prohibition, upheld the 24th Amendment, but imposed the **basic-structure limit**.
- **Indira Nehru Gandhi v. Raj Narain (1975):** invalidated **329A(4)** inserted by 39th Amendment, which insulated/validated the Prime Minister's election against the judicial process. Do not describe the whole 39th Amendment as struck down.

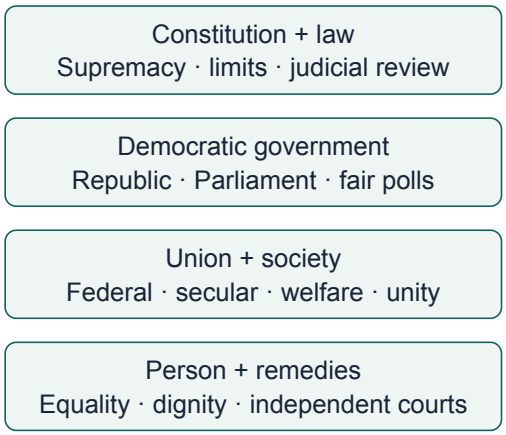
- **42nd Amendment (1976):** 368(4)/(5) sought to exclude amendment review and declare unlimited constituent power.
- **Minerva Mills (1980):** invalidated those clauses; **limited amending power itself is basic structure**. Also invalidated the extension of 31C protection to every DPSP; protected the balance between Parts III and IV.
- **Waman Rao (1980 decision; reported 1981):** reaffirmed the doctrine and distinguished Ninth-Schedule additions by the **24 April 1973 cutoff**.



Follow the changing boundary of Parliament's amendment power.

3. Basic features: remember in five groups

- **Constitution and law:** supremacy of Constitution; rule of law; limited amending power; separation of powers; judicial review.
- **Democratic government:** sovereign, democratic, republican character; parliamentary system; free and fair elections.
- **Union and society:** federal character; unity and integrity; secular character; welfare State and socio-economic justice.
- **Person and rights:** individual freedom and dignity; equality; essence of Fundamental Rights; harmony/balance of Fundamental Rights and DPSPs.
- **Courts and remedies:** judicial independence; effective access to justice; Supreme Court powers under **32, 136, 141, 142**; High Court jurisdiction under **226, 227**.
- These are judicially recognised features, **not a separate constitutional Schedule**. Several overlap; avoid treating a mnemonic as a rigid legal taxonomy.



Group the features for recall; the judicial list remains open.

4. Case map: all chapter cases

- **Kesavananda Bharati (1973):** constitutional supremacy, separation, republican democracy, secularism, federalism, sovereignty/unity, individual dignity/freedom, welfare and parliamentary government.
- **Indira Nehru Gandhi (1975):** democracy, equality, secular freedom of conscience, rule of law, judicial review and free/fair elections.
- **Minerva Mills (1980):** limited amendment power, judicial review and FR–DPSP balance.
- **Central Coal Fields:** welfare and socio-economic justice. **Bhim Singhji:** rule of law.
- **S.P. Sampath Kumar:** judicial review; **P. Sambamurthy:** rule of law and judicial review. Read tribunal arrangements with the later **L. Chandra Kumar** ruling, not as a blanket exclusion of High Courts.
- **Delhi Judicial Service Association (1991):** Supreme Court powers under 32/136/141/142.
- **Indra Sawhney (1992):** rule of law; **Indra Sawhney II (1999):** equality. **Kumar Padma Prasad (1992):** judicial independence.
- **Kihoto Hollohan (1992):** democratic framework and free/fair elections. Its judicial-review exclusion also illustrates the separate need for **State ratification** where the federal proviso applies.
- **Raghunath Rao (1993):** equality and unity/integrity in the privy-purse abolition challenge.
- **S.R. Bommai (1994):** federalism, secularism, democracy, unity/integrity, social justice and judicial review.
- **L. Chandra Kumar (1997):** High Court review under 226/227; tribunal decisions remain subject to the constitutional courts' scrutiny.
- **All India Judges' Association:** judicial independence. **Kuldip Nayar (2006):** democracy and free/fair elections; every alteration of an electoral rule is not necessarily basic-structure destruction.
- **M. Nagaraj (2006):** equality; constitutional identity must survive an amendment.
- **I.R. Coelho (2007):** rule of law, separation, judicial review and the essence of rights; Ninth-Schedule protection is not absolute.
- **Ram Jethmalani (2011):** Article 32's remedial importance. **Namit Sharma (2012):** freedom/dignity; its specific Information Commission directions were modified on review in 2013, so do not assume every original direction remains operative.
- **Madras Bar Association (2014):** judicial review and High Court jurisdiction under 226/227; tribunal design must respect judicial independence.

5. Ninth Schedule: the exam distinction

- **31B** protects scheduled laws from the specified Part III invalidity; the Schedule is not an immunity from all constitutional scrutiny.
- For laws inserted **after 24 April 1973**, courts can examine whether the amendment's effect on rights damages basic structure: **Waman Rao → I.R. Coelho**.
- The cutoff concerns **insertion into the Ninth Schedule**, not merely the original date of the ordinary law.
- A Fundamental Rights violation and basic-structure destruction are related but **not automatically identical tests**.
- Ordinary legislation is ordinarily tested against constitutional provisions and legislative competence; do not mechanically apply the amendment doctrine to every statute as an independent free-standing test.

6. One-minute recall / Mains frame

- **1951/1964–65: amend Rights allowed → 1967: prohibited → 1971: constituent power express → 1973: amend, but preserve basic structure → 1980: unlimited-power claim rejected.**
- **No Article expressly lists basic structure; its foundation is judicial interpretation of amendment power.**
- Mains: need for constitutional change → limited constituent power → key cases/features → democracy, federalism and rights protected → concern about judicial discretion → reasoned, case-specific scrutiny.

Supreme Court's Kesavananda Bharati judgment resource

National Judicial Academy: basic structure case chronology